

A Case Study on Precision in Legal Citation

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Abstract

Legal scholarship depends on accurate citation to ensure the integrity and verifiability of judicial references. This case study examines a citation inconsistency in the peer-reviewed article “Is Section 34(2) of the Civil Procedure Code Equitable?” (Karandikar 2022), which gives the decision date of *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar* as 5 July 2028 rather than the correct date of 5 July 2018 according to an authoritative legal repository. The discrepancy is limited to the year of the judgment. Although minor, such inconsistencies illustrate the importance of systematic citation checking in legal scholarship.

Introduction

Legal scholarship requires precision in the citation of cases, statutes, and other authoritative sources. Citations do more than identify legal authorities: they provide the basis on which readers can verify propositions, trace sources, and evaluate legal arguments. Even minor inaccuracies can therefore impede verification and diminish confidence in the reliability of a scholarly work.

This paper examines a specific citation inconsistency identified in the peer-reviewed article “Is Section 34(2) of the Civil Procedure Code Equitable?” published in the *Indian Journal of Law and Legal Research* (Karandikar 2022). The inconsistency concerns the date attributed to the decision in *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. The purpose of this study is limited to establishing the accuracy of the citation and does not extend to evaluating the substantive legal analysis presented in the article.

Methods

This study adopts a focused case-study methodology. The article was examined closely for potential inconsistencies in its citations to judicial decisions. Upon identifying a discrepancy, the cited decision was checked against an available primary judicial record. The inquiry is factual in scope: it seeks to establish

the correct date of the decision and assess the accuracy of the corresponding citation in the article.

Results

A citation inconsistency was identified in the reference to *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. Karandikar (2022) gives the date of the decision as “5th July 2028.” The judgment record maintained by Indian Kanoon, however, identifies 5 July 2018 as the date of decision.

The discrepancy is therefore confined to the year of the decision, with 2028 appearing in place of 2018. Based on the legal record, this difference warrants correction. Because the date forms part of the identifying information for a judicial authority, accuracy in this element is essential.

Discussion

The discrepancy examined here involves only a one-character error, but it illustrates the broader importance of precision in legal citation. Accurate citations enable readers to identify the relevant authority, independently verify its contents, and place the cited decision within its proper chronological and jurisprudential context. An incorrect year may make a judgment more difficult to locate in a legal repository.

The observation should be understood as a citation-level correction rather than an assessment of Karandikar’s substantive analysis of Section 34(2). The case instead illustrates a common challenge in legal scholarship: ensuring that factual particulars—including decision dates—are verified against primary sources. It highlights the value of systematic verification at multiple stages of the publication process.

Several practical measures can reduce the likelihood of similar discrepancies. First, judicial citations should be checked against the primary judgment or another authoritative legal repository before submission. Second, citation verification should form part of the copyediting process rather than being treated as a purely authorial responsibility. Third, where a factual citation discrepancy is discovered after publication, a concise correction or erratum can preserve the accuracy of the scholarly record without requiring any reassessment of the underlying argument.

Conclusion

Precision in legal citation is essential to the integrity and usability of legal scholarship. The discrepancy examined in this case study demonstrates how an inaccuracy in a decision date can impede independent verification of a judicial authority. Systematic citation checking by authors, reviewers, and editors can substantially reduce such discrepancies and improve the reliability of published work.

In the present case, correcting the cited decision date from 5 July 2028 to 5 July 2018 resolves the identified inconsistency. The correction is best understood as a factual and bibliographic clarification, contributing to the accuracy of the scholarly record.

References

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2. *Gopal Vitthalrao Bamankar v. Gajanan Vitthalrao Bamankar*. Second Appeal No. 638 of 2017. Bombay High Court, Nagpur Bench, 5 July 2018. <https://indiankanoon.org/doc/111090365/>.